

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)**

Writ Petition No. 3355 of 2022

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

-And-

IN THE MATTER OF :

Jahanara Begum

.....Petitioner

-Versus-

Bangladesh, represented by the Secretary, Ministry
of Primary and Mass Education, Bangladesh
Secretariat, Police Station Shahbagh, District-
Dhaka and others

.....Respondents.

Dr. Zamirul Akhtar, Advocate

.....for the petitioner

Mr. Md. Saiefuldin Khalid, DAG with

Ms. Fatema Rshid ,AAG

..for the Respondents

Heard and Judgment on: 29.08.2024

Present:

Ms. Justice Ashish Ranjan Das

&

Ms. Justice Fahmida Quader

Ashish Ranjan Das, J;

Rule nisi was issued at the instance of the petitioner Jahanara Begum
in the following terms:

*“Let a Rule Nisi be issued calling upon the respondents to show
cause as to why the respondents No. 1 should not be directed to take*

decision on the basis of recommendation made under the signature of the respondent No 4 for Nationalizing the service of the petitioner in the revenue set-up (Annexure-G) and/or pass such other or further order or orders as to this Court may seem fit and proper.”

Short fact is that Abu Siddique Chowdhury Primary School was nationalized in 2013 but one of its teaching staff Jahanara Begum’s job was not taken over by the government. For the purpose upon her representation, the Director General of Primary Education sent a recommendation to the Secretary, Ministry of Primary and Mass Education of the government on 10.04.2018. More than 6 years have been elapsed but the competent authorities have been sleeping over, the matter without taking a decision.

The learned lawyer for the petitioner Dr. Zamirul Akhtar submits that the purpose of the justice will be served if the respondent no.1 is directed to positively reply Annexure- G dated 10.04.2018 and the learned Deputy Attorney General also does not disagree.

Therefore, the respondent No.1 Secretary, Ministry of Primary and Mass Education is directed to dispose of the letter dated 10.04.2018 sent by the Director General of Primary and Mass Education within 30 days from the date of receipt of the judgment and order.

Accordingly, the Rule is disposed of.

No order as to costs.

Fahmida Quader, J:

I agree.

Basgar, B.O.